BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. CAPTAIN G. SERRATO, in his individual and official capacities as Commander, Dublin Area, California Highway Patrol, Defendant.	**Case No. 4:26-cv-05953-ASK** **ADMINISTRATIVE MOTION TO CONSIDER WHETHER CASES SHOULD BE RELATED** (Civil L.R. 3-12 and 7-11)

TO THE HONORABLE AJAY S. KRISHNAN, UNITED STATES MAGISTRATE JUDGE:

Pursuant to Civil Local Rules 3-12 and 7-11, Plaintiff Brendan Ngehsi Newanforbi, appearing in propria persona, respectfully submits this Administrative Motion requesting that the Court determine whether the following two actions are related:

1. *Newanforbi v. Serrato*, No. 4:26-cv-05953-ASK (the instant action), assigned to Magistrate Judge Ajay S. Krishnan; and

2. *Nforbi v. Meza-Gonzalez et al.*, No. 3:26-cv-08271-PHK, assigned to Magistrate Judge Peter H. Kang.

Plaintiff is the same individual in both actions, appearing under different name variants. The two cases arise from the same nucleus of operative facts and satisfy both prongs of Civil L.R.

3-12(a).

I.

STATEMENT OF RELATIONSHIP UNDER CIVIL L.R. 3-12(a)

A. The Actions Concern Substantially the Same Transaction or Event

Both actions arise from a single encounter on November 1, 2024, on Interstate 580 East in Livermore, Alameda County, California. During that encounter, California Highway Patrol Officers Santiago Meza-Gonzalez (Badge #023295) and Jose Melano (Badge #023054) conducted a traffic stop of Plaintiff, arrested him, and obtained an involuntary blood draw through a search warrant. Plaintiff alleges that the officers fabricated material statements in a sworn CHP report to justify the arrest and procure the blood-draw warrant.

The instant action, *Newanforbi v. Serrato*, challenges the subsequent denial of Plaintiff's Form I-918, Supplement B certification request by Captain G. Serrato, Commander of the CHP Dublin Area. Serrato's denial rests on his characterization of the November 1 incident. This Court's June 29, 2026 screening order (Dkt. No. 5) expressly recounted Plaintiff's allegations that CHP officers subjected him to a false arrest, fabricated material statements in a sworn report, and forced an involuntary blood draw through a warrant procured by those fabrications.

The related action, *Nforbi v. Meza-Gonzalez*, asserts six causes of action under 42 U.S.C. § 1983 directly against Officers Meza-Gonzalez and Melano for their conduct during that same encounter, including claims for judicial deception, fabrication of evidence, unlawful arrest, unlawful entry, unlawful search, and First Amendment retaliation. The complaint in that action was docketed on August 10, 2026 as Dkt. 1 and remains the court pleading of record. Both officers were personally served on August 14, 2026.

The factual nucleus is identical. Both actions require adjudication of substantially overlapping facts concerning: the November 1, 2024 encounter between Plaintiff and Officers Meza-Gonzalez and Melano; the contents and accuracy of the CHP dashcam recording that captured the entire two-hour encounter; the officers' observations, conduct, and representations during the encounter; the accuracy of the officers' subsequent sworn statements in the CHP report; the circumstances of Plaintiff's arrest; and the warrant application and resulting involuntary blood draw.

The first element of Civil L.R. 3-12(a) is satisfied.

B. Separate Adjudication Risks Duplicative Labor and Inconsistent Results

If these actions proceed before different judges, each will independently examine the same evidentiary record, including the same CHP dashcam footage, the same CHP report, and the same warrant materials. This will produce unduly burdensome duplication of judicial labor.

More critically, separate adjudication risks inconsistent factual findings concerning the officers' conduct on November 1, 2024, the accuracy of their sworn representations, and the lawfulness of the arrest and blood draw. For example, a determination in one action that the officers' sworn statements were truthful could directly conflict with a determination in the other action that those same statements were fabricated.

This Court has already familiarized itself with this factual nucleus. In its June 29, 2026 screening order, the Court reviewed Plaintiff's detailed allegations concerning the officers' conduct, the fabricated report, and the warrant-based blood draw, and concluded that the complaint states a claim sufficient to satisfy § 1915 review. Reassignment of the related action to this Court would promote judicial economy by consolidating before a single judge both federal actions arising from the same set of events.

The second element of Civil L.R. 3-12(a) is therefore satisfied.

II.

COMPLIANCE WITH CIVIL L.R. 7-11

Civil L.R. 7-11(a) requires that an administrative motion be accompanied by a proposed order and either a stipulation under Civil L.R. 7-12 or a declaration explaining why a stipulation could not be obtained. A Declaration of Plaintiff is filed concurrently herewith, explaining that no defendant has appeared in either action, making stipulation impossible at this time. A Proposed Order is also submitted concurrently.

III.

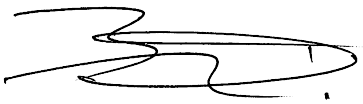
CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court find *Newanforbi v. Serrato*, No. 4:26-cv-05953-ASK, and *Nforbi v. Meza-Gonzalez et al.*, No. 3:26-cv-08271-PHK, to be related under Civil L.R. 3-12(a) and direct the Clerk to reassign the higher-numbered action to this Court pursuant to Civil L.R. 3-12(f)(3).

Pursuant to Civil L.R. 3-12(b), a copy of this motion has been filed in *Nforbi v. Meza-Gonzalez et al.*, No. 3:26-cv-08271-PHK, using the "Notice (Other)" ECF event.

Dated: August 20, 2026

Respectfully submitted,



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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. CAPTAIN G. SERRATO, in his individual and official capacities as Commander, Dublin Area, California Highway Patrol, Defendant.	**Case No. 4:26-cv-05953-ASK** **DECLARATION OF BRENDAN NGEHSI NEWANFORBI IN SUPPORT OF ADMINISTRATIVE MOTION TO CONSIDER WHETHER CASES SHOULD BE RELATED** (Civil L.R. 7-11)

DECLARATION OF BRENDAN NGEHSI NEWANFORBI

I, Brendan Ngehsi Newanforbi, declare as follows:

1. I am the Plaintiff in this action, *Newanforbi v. Serrato*, No. 4:26-cv-05953-ASK, and in the related action, *Nforbi v. Meza-Gonzalez et al.*, No. 3:26-cv-08271-PHK. I appear in propria persona in both actions.

2. Civil Local Rule 7-11(a) requires that an administrative motion be accompanied by either a stipulation under Civil L.R. 7-12 or a declaration explaining why a stipulation could not be obtained.

3. I am unable to obtain a stipulation because no defendant has appeared in either action:

a. In the instant action, *Newanforbi v. Serrato,* the United States Marshals Service personally served Defendant Captain G. Serrato with process on August 5, 2026, at 10:20 a.m., at the California Highway Patrol Dublin Area office, 4999 Gleason Drive, Dublin, California, via Kim Schoonmaker, Office Assistant (USM-285 Process Receipt and Return, Doc. 15, filed August 6, 2026). Defendant Serrato's time to answer or otherwise respond runs to August 26, 2026. As of the date of this Declaration, Defendant Serrato has not appeared or filed any responsive pleading.

b. In the related action, *Nforbi v. Meza-Gonzalez et al.,* the complaint was docketed on August 10, 2026 as Dkt. 1 and remains the court pleading of record. Both defendants were personally served on August 14, 2026 -- Officer Meza-Gonzalez via the Stanislaus County Sheriff at the CHP Modesto Area, and Officer Melano via the Sacramento County Sheriff at the CHP South Sacramento Area. Their time to answer or otherwise respond runs to September 4, 2026. As of the date of this Declaration, neither defendant has appeared or filed any responsive pleading.

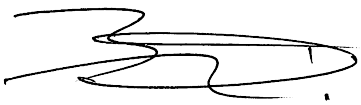
4. Because no defendant has appeared in either action, it is not possible to obtain a stipulation regarding the relationship of these cases at this time.

I declare under penalty of perjury under the laws of the United States that the foregoing is true and correct.

Executed on August 20, 2026, in Milpitas, California.

Dated: August 20, 2026

Respectfully submitted,



BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Pro Per

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. CAPTAIN G. SERRATO, in his individual and official capacities as Commander, Dublin Area, California Highway Patrol, Defendant.	**Case No. 4:26-cv-05953-ASK** **[PROPOSED] ORDER GRANTING ADMINISTRATIVE MOTION TO CONSIDER WHETHER CASES SHOULD BE RELATED** (Civil L.R. 3-12)

Having considered Plaintiff's Administrative Motion to Consider Whether Cases Should Be Related, filed pursuant to Civil Local Rules 3-12 and 7-11, and good cause appearing therefor:

IT IS HEREBY ORDERED that:

1. The following actions are related within the meaning of Civil L.R. 3-12(a):

a. *Newanforbi v. Serrato*, No. 4:26-cv-05953-ASK; and

b. *Nforbi v. Meza-Gonzalez et al.*, No. 3:26-cv-08271-PHK.

2. Pursuant to Civil L.R. 3-12(f)(3), the Clerk is directed to reassign *Nforbi v. Meza-Gonzalez et al.*, No. 3:26-cv-08271-PHK, to the undersigned.

3. The case management conference in *Nforbi v. Meza-Gonzalez et al.* shall be rescheduled by the undersigned in accordance with Civil L.R. 3-12(g).

IT IS SO ORDERED.

Dated: _____

_____

HON. AJAY S. KRISHNAN

United States Magistrate Judge